

Som Raj vs Seema Rani on 12 February, 2024

Author: Vikas Suri

Bench: Vikas Suri

204 2024:PHHC:019359

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

TA-1533-2023

Date of Decision: 12.02.2024

SOM RAJPetitioner
VERSUS
SEEMA RANIRespondent

CORAM: HON'BLE MR. JUSTICE VIKAS SURI

Present: Mr. Aditya Dassaur, Advocate

for the petitioner.
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VIKAS SURI, J. (Oral)

1. Prayer in this petition is for transfer of the petition filed by respondent-wife under Section 13 of the Hindu Marriage Act, 1955, from the Court of Principal Judge, Family Court, Kurukshetra to the Court of competent jurisdiction at SBS Nagar.

2. Mr. Parminder Walia, Advocate has put in appearance on behalf of respondent and has filed Power of Attorney, which is taken on record.

3. Pursuant to previous order, the parties are present in person.

4. Learned counsel for the parties jointly submit that the parties have settled their dispute out of Court and have amicably decided to file a joint petition under Section 13-B of the Hindu Marriage Act, 1955, for dissolution of marriage by a decree of divorce by mutual consent, before the Family Court at Chandigarh.

TA-1533-2023 2 2024: PHHC:019359

5. Respondent-wife undertakes not to press the above noticed petition under Section 13 of the Hindu Marriage Act, 1955, registered as HMA/724/2023 titled as Seema Rani vs. Somraj, pending in the Court of Principal Judge, Family Court, Kurukshetra and further to withdraw the same to enable the parties to file a joint petition under Section 13-B of the Act (supra).

6. In view of the above, prayer in the present petition does not survive and the same has been rendered infructuous. It is, thus, prayed by learned counsel for the petitioner that the same be disposed of as such with liberty to the petitioner to seek its revival, in case the above petition is continued at Kurukshetra, contrary to the undertaking noticed above.

7. Disposed of as having been rendered infructuous with liberty aforesaid.

(VIKAS SURI) February 12, 2024 JUDGE Sangeeta Whether reasoned/speaking: Yes/No Whether reportable: Yes/No